

SENATE No. 187

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting biometric information under the security breach law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>12/2/2025</i>

SENATE No. 187

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 187) of Michael J. Barrett for legislation to protect biometric information under the security breach law. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 140 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting biometric information under the security breach law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 93H of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the second paragraph the following
3 paragraph:-

4 “Biometric indicator”, any unique biological attribute or measurement that can be used to
5 authenticate the identity of an individual, including, but not limited to, fingerprints, genetic
6 information, iris or retina patterns, voice recognition, facial characteristics or hand geometry.

7 SECTION 2. Said section 1 of said chapter 93H is hereby further amended by striking
8 out, in line 45, the word “or”.

9 SECTION 3. Said section 1 of said chapter 93H is hereby further amended by inserting
10 after the word “public,” in line 52, the following words:- ; or (d) a biometric indicator.